

CASE SUMMARY

State v. Laxmi Mishra

SC No. 403/2021 | FIR No. 48/2021, PS Sonia Vihar | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	12 March 2026 (date of inspection / offence: 16 January 2020)
PARTIES	State (BSES Yamuna Power Ltd.) v. Laxmi Mishra W/o Sh. Adesh Mishra, R/o G-5/69, Gali No. 5, Sonia Vihar, Delhi (inspected premises: H. No. 2674, Gali No. 16, Pusta-5, Sonia Vihar)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Laxmi Mishra dishonestly abstracted electricity at her unmetered premises (used for mixed commercial and domestic purposes) by illegally tapping from the Distribution Box of BSES YPL, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether — having obstructed the inspection, removed the tapped wires before they could be seized, and given the inspectors a false name — she discharged the onus cast by the third proviso to Section 135(1), her plea of solar power being unsupported by any evidence.

FACTS

On 16 January 2020 at about 7.41 a.m., a joint inspection team of BSES Yamuna Power Ltd. headed by Sh. Ravi Kumar Tiwari (Assistant Manager) inspected the premises at H. No. 2674, Gali No. 16, Pusta-5, Sonia Vihar, Delhi. No electricity meter was installed; the accused was found drawing supply by illegal tapping from the Distribution Box of BSES YPL. The connected load was 1.835 KW, used for commercial as well as domestic purposes. The inspection was actively resisted: the five-member team could not get the premises opened; the accused's ground-floor shop opened only briefly before her son pulled down its shutter; the load could not be captured on videography because of the accused's resistance and was instead taken physically on her own verbal disclosure; and the illegal wires could not be seized because the accused removed them and, despite repeated requests, refused to hand them over. Sh. Mukesh Kumar videographed what proceedings he could and furnished a Section 65B certificate. The company assessed a theft demand of Rs. 61,827/-, which went unpaid, and on its Authorised Officer's complaint FIR No. 48/2021 was registered at PS Sonia Vihar.

During investigation it emerged that the accused had given a false name — “Geeta” — at the inspection to conceal her identity. Notice under Section 251 Cr.P.C. was given on 12 April 2023; the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 ASI Narender Singh (IO; proved the FIR, Section 41A notice, interrogation report, Aadhaar, ownership documents and Pabandinama, and deposed to the false name); PW-2 Ravi Kumar Tiwari (team head; proved the CD, inspection report, load report, advisory notice, theft bill and complaint); and PW-3 Mukesh Kumar (videographer; proved the video and the Section 65B certificate Ex.PW3/A). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; she led no defence evidence, her counsel merely suggesting — without proof — that she was using solar power.

REASONING OF THE COURT

HEADNOTE

Obstructing an inspection — refusing to open the premises, spiriting away the tapped wires, and giving a false name — does not defeat a Section 135 prosecution; the offence is proved by the officials’ consistent testimony, the videographed proceedings and the load taken on the accused’s own disclosure, and her obstruction and concealment are themselves circumstances of guilt. A bare, unproved plea of solar power cannot rebut the compulsory presumption in the third proviso to Section 135(1).

Section 135(1)(a) was engaged by the distribution-box tap. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the illegal tapping from the BSES YPL Distribution Box to the unmetered premises as a clause (a) connection with the licensee’s works. On proof of that artificial means the third proviso’s presumption arose.

Obstruction and concealment were treated as circumstances of guilt. The accused refused to open the premises to a five-member team; her son shut the shop shutter; the tapped wires were removed and, despite repeated requests, never handed over; and she gave the inspectors a false name, “Geeta,” exposed only in investigation. Far from creating a doubt, this conduct was read as demonstrating the accused’s malafide intention and active involvement in the theft.

The load stood proved though the wires were never seized and the video could not capture it. Because the accused’s resistance prevented videographic capture of the load, it was taken physically on her own verbal disclosure — and never disputed in cross-examination, where she did not challenge the load report. That the wires could not be seized (the accused having removed them) did not defeat proof of the tap: the officials’ consistent testimony and the videographed proceedings established it. The defence’s own question to the videographer about the make of the handycam was, on *Balu Sudam Khalde v. State of Maharashtra*, 2023 INSC 314, an admission of the factum of videography.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

The unproved solar-power plea could not rebut the compulsory presumption. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court held that the defence’s bare suggestion of solar power, put forward without a shred of evidence, could not make the defence reasonably probable. The accused led no defence evidence, claimed no Genset, and produced no paid bills (*Mukesh Rastogi*; Section 106 onus); nor was there any evidence that the videographed premises were not hers. The presumption stood un rebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises by illegal tapping from the licensee’s distribution box as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 61,827/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises and that Laxmi Mishra was found indulging in direct theft of electricity through illegal wires — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence and offered only an unproved solar-power plea, she failed to rebut the statutory presumption. **Laxmi Mishra is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A rare obstruction case — the accused fought the inspection, hid the wires and gave a false name, yet was convicted. Six propositions stand out:

- **Obstruction is a circumstance of guilt.** Refusing to open the premises, removing the tapped wires, and giving a false name were read as malafide conduct pointing to involvement — not as gaps in the prosecution.
- **The load can be proved without seizing the wires.** Where the accused spirits away the case property, the load taken physically on her own disclosure, together with the videographed proceedings, still proves the theft.
- **A false name backfires.** Giving the inspectors a wrong name (“Geeta”), exposed in investigation, corroborated dishonest intention rather than raising a doubt about identity.

- **An unproved solar-power plea is no rebuttal.** A bare suggestion of solar power, unsupported by any evidence, cannot discharge the third-proviso onus — only proof of lawful, metered use (paid bills; Section 106 onus, *Mukesh Rastogi*) will.
- **Defence questions can admit the inspection.** Asking the videographer about the make of the handycam admitted the factum of videography (*Balu Sudam Khalde*).
- **A public witness remains unnecessary.** Official inspection testimony, videographed and 65B-certified, suffices absent shown enmity (*Ashwani Kumar*; *Sushil Sharma*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Balu Sudam Khalde v. State of Maharashtra</i> 2023 INSC 314	Incriminating suggestions put by defence counsel in cross-examination bind the accused and can themselves establish facts such as the factum of, and presence at, the inspection.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.